HAVELLIN PALM BEACH

Estate & Trust Settlement Services

A Reference for Estate Counsel, Trustees, and Fiduciaries

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1. Who We Are

Havellin Palm Beach is a white-glove estate transition firm serving Palm Beach County, and a Professional Member of NASMM, the National Association of Senior and Specialty Move Managers. We handle the contents of estates and trusts, and provide home cleanouts, downsizing and move management, and home preparation.

Every engagement runs on two roles. The **Transition Concierge** is the senior lead: on site for the whole project, your single point of contact, and the keeper of the record. **Property Specialists** do the hands-on work under the concierge's direction. Counsel and trust officers deal with the concierge.

The principals, Anthony Graziano and Ashley Jerome, are licensed Florida real estate agents with backgrounds in investment banking and luxury client service, and both hold the Seniors Real Estate Specialist (SRES) designation. Section 8 discloses the brokerage relationship.

2. The Standard We Work To

A personal representative and a trustee carry the same exposure: each must be able to show what they held, what it was worth and where it went. Our record is built so they can.

Probate. Under Fla. Stat. §733.604 the personal representative files a verified inventory within 60 days of Letters, listing the estate's property in reasonable detail with each item's estimated fair market value at the date of death. It is amended if property surfaces later or a value proves wrong, and a beneficiary may ask in writing how any value was determined. For the tangible personal property we prepare the **Court Inventory**, for the representative to adopt and counsel to serve and file. We never file anything with the court.

Trust. The trustee must keep the qualified beneficiaries reasonably informed and account to them (§§736.0813 and 736.08135). No inventory is filed with a court, but the accounting must show the same things. We prepare

the **Trust Schedule**: the tangible personal property the trust holds, at fair market value at the date of death. It supports the trustee's accounting; it is not one.

Pour-over and family matters. Where a pour-over will sends probate assets into a trust, we prepare both. Where there is neither a court nor a trust, the inventory and the Disposition Ledger are the record.

Our role is narrow on purpose. We document, coordinate and carry out. The fiduciary decides, counsel advises and credentialed appraisers appraise. We never read or interpret the will or the trust instrument: the list of items designated to particular people comes from you or from counsel. We take direction from the personal representative or trustee alone. Family and beneficiaries are welcome at the property, but nothing is released on anyone else's word.

3. Before Any Work Begins

A walkthrough and a written estimate. No estimate is issued sight unseen, and it is attached to the signed agreement as that agreement's own Exhibit A.

The agreement. Its form is attached as Exhibit A. The personal representative or trustee, and each co-representative or co-trustee, signs it, and a signed copy goes to you.

Authority. A certified copy of the Letters on a probate matter, or the successor trustee's Certification of Trust (§736.1017) on a trust, with any limits on that authority noted in writing. No work begins until the agreement is signed, the deposit is received and the authority paper is on file. We open a direct channel with counsel at the start.

Secured first. Jewelry, cash, negotiable instruments and original legal documents are secured with you, counsel or a bank at the walkthrough, before work begins.

Documentation scope. Chosen at intake and written into the agreement:

Scope	What Havellin produces	What counsel does
Contents list	Every item of consequence photographed, described, located and graded for condition. No values.	Values it, arranges any appraisal and prepares the filing
Inventory with values	The contents list, plus an estimated fair market value for each item with its basis stated	Arranges any appraisal and prepares the filing
Inventory + appraisals	The valued inventory, with specialist appraisers engaged and scheduled by us and their reports attached	Prepares the filing
None	Sorting, staging and set-aside against counsel's own schedule. No inventory.	The whole inventory and the filing

Timing. The estimate dates the work. On a probate matter the inventory is planned for delivery to counsel ahead of the 60-day filing.

4. How the Property Is Documented

Photographs. Every room is photographed as found, before anything in it is moved. Every item, or group of like items, is photographed on its own, with close-ups of marks, signatures, labels and damage. Each room is photographed again once it is cleared.

Each item. Every item carries a permanent number, its room, description, quantity, condition and destination, and where the scope includes values, its value, valuation date and the basis for that figure. On every paper, each item number links to its photograph.

Values. Our values are estimates, never appraisals. Each states its basis on the line: a named sale, current listings, or the going rate for that kind of thing. A figure is called an appraisal only where an appraiser's report is noted against it. Fair market value at the date of death is the standard unless counsel directs otherwise, and the §2032 alternate valuation date is applied where it has been elected.

AI-assisted research. We use AI software (Claude, by Anthropic) to identify items from their photographs and to research their value against public sale records and current listings. It decides nothing. Every figure shows the evidence it rests on, and anything uncertain is flagged for a person to review.

Appraisals. We flag for appraisal any item we estimate at $3,000 or more, in any category ($500 on a disputed estate), and anything of a specialist kind we cannot value with confidence. The Appraisal Worklist groups them by specialist and shows the appraiser engaged for each and where each stands. We do not perform appraisals. Whether we or counsel engage the appraisers depends on the scope above; either way we give the appraiser access and, on request, are present for the visit.

Federal estate tax. Where a Form 706 is due, every article worth more than $100 is listed on its own as Treas. Reg. §20.2031-6(a) requires, and the $3,000 aggregate for articles of artistic or intrinsic value under §20.2031-6(b) is tracked, so counsel knows when an expert appraisal must be filed with the return.

Property outside the estate. Each item carries its track as you or counsel direct: probate, exempt under §732.402, homestead, non-probate or trust. Exempt property is listed with its own subtotal and the §732.402 cap test, and property outside the probate estate is listed separately from it.

No paper claims more than it is. A schedule with an item not yet valued, or a possible duplicate not yet resolved, prints as DRAFT, states its total as recorded so far and names the gaps.

Found in the house. An original will or codicil is handed unopened to the estate attorney the same day, against a signed receipt, for deposit with the clerk within the ten days §732.901 allows. Cash is counted by two people, sealed in a numbered bag and signed for by the fiduciary the same day. Deeds, titles, statements, policies, bonds, password sheets, hardware wallets and the like are listed, never copied or used, and handed to counsel or you the same day against a signed receipt. A safe or locked container is photographed closed, opened only with you or counsel present, photographed open, and what was inside listed.

Firearms. Photographed where found and not moved without written authority. A firearm leaves only through a licensed dealer, whether it is sold or going to a named person, and nobody else carries one out, family included. Items regulated under the National Firearms Act are never transported by us. Havellin never buys a firearm and takes nothing from its sale.

5. Nothing Leaves Without Written Approval

The release approval request. Before anything leaves, the items ready to go are listed for your written approval, grouped by destination and recipient, each with its value and basis where the scope states values. Items valued at $500 or more, specific bequests and anything carrying a caution are initialled one by one; the rest are initialled by group. Every personal representative or trustee signs it. Nothing on the list is moved, sold, donated or disposed of until it is signed.

Counsel sees the inventory first. Where an attorney is involved, the inventory goes to counsel before the first item is put up for approval.

An approval covers what it says. If an item's destination, recipient or value changes materially after you sign, it comes back to you for approval.

Disagreement. Where beneficiaries disagree about an item, it is held until you instruct us in writing. We do not arbitrate.

Signed for as it leaves. Whoever takes property away (a selling vendor, a charity, a beneficiary, an appraiser, the hauler) signs for it, and the signed record is filed to the estate's folder. Every item released to a beneficiary is receipted, a firearm is receipted by its dealer, each charity's donations are listed on a Donation Record with its receipt (donated property recorded at more than $5,000 is flagged, since a deduction for it needs a qualified appraisal, a question for your tax adviser), and the hauler's record carries the landfill or recycling ticket.

Chain of custody. On probate and trust matters every hand-off is logged with its date, the parties and who recorded it. Keys, fobs and access codes are logged in and out the same way, and every one goes back at close. If the locks are changed, the day, the locksmith and the receipt are recorded.

Proceeds. The selling vendor pays the estate or the trust directly. Havellin never receives or holds proceeds. Each vendor statement is reconciled to the cent against the items it covers.

Incidents. Anything that goes wrong is reported the same day. If property is damaged you are told within 24 hours, and above $500 the insurance carrier is engaged and its contact given to you within 48 hours.

The Disposition Ledger. The record of where every item went: who authorized it, who received it, when, and on a sale the gross, the fees and the net. Available at any point, marked in progress, and signed by every fiduciary at close.

6. What You Receive

At engagement

- The estimate and the executed agreement.
- Certificates of insurance, Havellin's and each vendor's, on request.

During the work

- Read-only access, on request, to the as-found and item photograph folders, with the inventory spreadsheet kept current beside them.
- Release approval requests as items become ready to leave.
- The inventory, the Disposition Ledger or the Appraisal Worklist at any point, marked in progress.

At close

The documentation package goes to counsel directly: the estate attorney on a probate matter, the trustee's attorney (or the trustee) on a trust, with the representative copied.

- **Certification and Cover Sheet**: what the package holds, what it is for, and the concierge's certification that it was prepared in good faith.

- **Court Inventory (§733.604)** on a probate matter, **Trust Schedule** on a trust: the tangible personal property, scheduled for adoption or receipt.
- **Estate Inventory Report** (the Contents List where no values are in scope): every item with its photograph, value and destination.
- **Disposition Ledger**, signed.
- **Appraisal Worklist**, with the filed appraisal reports linked.
- **Release Approvals and Chain of Custody**: who approved each item and when, and every custody event.
- **Incident Record**, where anything was reported.
- Links to the photograph folders.

Filed in the estate's folder beside it: every signed approval, receipt, pickup sheet and disposal record, charity receipts, vendor proceeds statements and the Key and Access Custody Record.

The final invoice. On a fixed fee it closes the agreed fee, with any change orders itemized against it. On hourly billing it is built from the hours logged and reconciled against the estimate.

Retention. The Project Records (the photographs, the inventory and the record of disposition) are kept for seven years from close and provided on request to the representative or trustee, to counsel, and to anyone they authorize in writing.

7. Fees

- **No commission on sales.** Havellin never charges a commission on sales or auction results, or a percentage of the estate's value.
- **Fixed fee or hourly.** Estates are usually quoted at a fixed fee for the scope in the estimate, which does not move with the hours worked. Hourly engagements bill the hours logged at the rates in the agreement.
- **Payment.** 50% on signing, 25% at the midpoint and the balance after the final walk-through, due within seven days. The deposit is earned on signature and is not refundable. ACH, wire or check.
- **Changes.** A fixed fee changes only by a change order signed by both sides. On hourly billing we obtain your written approval before the hours run more than 15% over the estimate, and added work needs a signed change order.
- **Vendors.** Every vendor invoices the estate directly at its own price, or, if it sells, takes its commission from the proceeds. Havellin adds no markup. Where the estimate includes preparation trades that we coordinate (repairs, painting; licensed trades contract with and bill you directly), a Home Preparation Fee of 30% of their quotes applies, stated on the estimate. Moving and packing materials are a fixed package price.

8. Independence and Disclosures

Nothing is bought. Havellin, its owners, team members and contractors never buy or receive any property of the estate or the trust, directly or through anyone else, and take no part of the proceeds of its sale.

Referral fees. A vendor we recommend may pay Havellin a referral fee. It is paid from the vendor's own revenue: it does not increase the commission or charges you pay, it is never added to the vendor's invoice, and none is received on the sale of a firearm. The estimate says so on that vendor's line, and the Disposition Ledger names every vendor on the job that pays one. You may engage any vendor you choose.

Real estate. The principals are licensed Florida real estate agents with Douglas Elliman, Palm Beach. If the estate's real property is to be listed, we may have an interest in that listing, and we say so in the first conversation, before any engagement. Brokerage is always a separate agreement. The estate engagement is never conditioned on it, and choosing another agent changes nothing about the estate work or its price.

9. Insurance, Confidentiality and Records

Insurance. Havellin's coverage, in place before work begins: general liability; inland marine (bailee's) coverage for property in our care, with an agreed-value schedule for fine art and collectibles; professional liability; commercial auto, including hired and non-owned; umbrella; commercial crime (fidelity) and cyber coverage reaching every team member and contractor on site; and workers' compensation as Florida requires. The certificate, provided on request, states the limits. An item worth more than the per-item limit is scheduled with the insurer or handled by an insured specialist, and we name those items to you before work begins.

Vendors. We ask every vendor we book for its certificate of insurance before its first day on site, and tell you of any that has not provided one. Your Transition Concierge is present for the pickup of items of value.

Confidentiality. Every team member and contractor signs a written confidentiality agreement before working on any engagement. Nothing about the estate, the property or the family is disclosed without written consent, except to counsel and others you authorize, to vendors as the work needs, to our technology providers (cloud storage and the AI research above) under their confidentiality terms, or as the law requires. Records are held in the estate's own folders, and photographs are shared read-only with the people recorded on the file.

Marketing. The agreement allows anonymized photographs (no address, no names, no identifiable person, no documents) to be used in our marketing unless you opt out, on the agreement or by written notice at any time. In practice we publish nothing until the property has closed or been cleared, and nothing from a contested matter. The inventory and the record of where things went are never used.

Exhibit A: Estate Engagement Agreement

Within the agreement below, "Exhibit A" means the client's own estimate, attached to each engagement; it is not reproduced here.

This is the form of the estate engagement agreement as Havellin issues it on a probate matter at a fixed fee. Each client's copy is generated for the matter and signed with the client's own estimate attached as its Exhibit A. On a trust the same form names the successor trustee and the Certification of Trust (§736.1017) in place of the personal representative and the Letters, and §5.2 supports the trustee's accounting (§§736.0813, 736.08135) in place of the §733.604 inventory; on an hourly engagement §3.1 sets out the rates and §3.2 the 15% notice. Bracketed insurance figures are the limits applied for, replaced once bound.

This Agreement governs Probate Estate Settlement services provided by Havellin Palm Beach, LLC to the Client identified below.

Section 1 · Parties

1.1 Service Provider

Company: Havellin Palm Beach, LLC

Primary Contact: Anthony Graziano / Ashley Jerome

Email: info@havellinpalmbeach.com

Phone: (561) 652-5522

Address: 515 N Flagler Drive, Suite 350 · West Palm Beach, FL 33401

Florida LLC Document No.: L26000216712

1.2 Client / Authorized Party

Estate: Estate of [Decedent]

Authorized Representative: [Personal Representative]

Role / Authority: Personal Representative

Mailing Address: [Address]

Email: [Email]

Phone: [Phone]

Estate Attorney: [Attorney] · [Firm]

Attorney Phone: [Attorney phone]

Letters of Administration: [Pending / Received]

The Client is the Authorized Representative named above, acting as Personal Representative of the Estate of [Decedent] and not individually; “Client” in this Agreement means the Authorized Representative in that capacity.

1.3 Property

Property Address: [Address]

Property Type: [Property type]

Approx. Square Footage: [Square footage]

Rooms & Spaces Included: [as listed in Exhibit A]

Probate Case Number: [Case number]

Court: Circuit Court for Palm Beach County, Florida, Probate Division

Section 2 · Scope of Services

Havellin Palm Beach will provide the services described in this Agreement and in Exhibit A for the property and its contents, as directed by the Personal Representative. Services include, as applicable: room-by-room documentation and inventory of the contents; sorting, staging, and photographing the contents of consequence; sale, auction, and liquidation coordination; charitable donation logistics with each charity's receipt; disposal and waste management; delivery of items to the persons the Personal Representative names in writing, against signed receipts; and vendor coordination throughout. **The coordination of professional appraisals is not within this engagement** and remains the responsibility of the Client and the estate attorney, who receive Havellin's list of the items it believes warrant one. Where applicable, property preparation is included as reflected in Exhibit A.

The documentation scope for this engagement is **Inventory with values**: the contents list plus an estimated fair market value at the valuation date, with the basis of each value stated.

All disposition decisions — including sale, auction, donation, or disposal of any item — require written authorization from the Personal Representative (each of them, where there is more than one) prior to execution. The specific scope, estimated hours, and projected costs are detailed in Exhibit A (attached estimate), which is incorporated into this Agreement by reference.

2.1 Explicit Exclusions

The following are outside every Havellin engagement and cannot be added by Change Order: legal advice, legal representation or probate court filings (the estate attorney's); tax preparation or filing; management of financial accounts; real property sales (Havellin’s principals, Anthony Graziano and Ashley Jerome, are licensed Florida real estate sales associates with Douglas Elliman and would earn a commission on any listing; brokerage is a separate agreement with Douglas Elliman, this engagement is not conditioned on it, and choosing another broker changes nothing about the Services or the fee); and structural repairs, renovation, construction or any other work requiring a Florida contractor license (where Exhibit A includes property preparation, Havellin coordinates licensed trades, who contract with and bill the Client directly).

Section 3 · Fees, Billing & Payment Terms

3.1 Fixed Project Fee

The Parties expressly agree that Havellin's fee for this engagement is a **fixed price of $[fixed fee]** for the scope of work described in Exhibit A. This fixed price is firm and does not vary with the actual hours worked. The hourly rates in the table below apply only to Change-Order work authorized beyond that scope.

Rates for Change-Order Work

Role	Billing Rate	Description
Transition Concierge (TC)	$150 / hour	Senior lead on-site. Manages all phases, client communication, the record of the work, and vendor coordination.
Property Specialist (PS)	$100 / hour	Physical estate work — sorting, packing, staging, loading. Scheduled by TC as needed.
Moving & Packing Materials	Fixed package price	Moving and packing materials are supplied as a fixed package, quoted on the Estimate, and billed at that price. The package is not cost-plus and carries no separate handling fee.
Third-Party Vendors	At cost — no fee	Vendors bill the estate directly at cost. Havellin adds no markup to any vendor invoice; the concierge time spent coordinating them is included in the fixed project fee above.

3.2 Project Estimate

The project estimate for this engagement is generated from the Havellin Job Estimator and is attached to this Agreement as Exhibit A. The estimate details projected TC hours, PS hours, materials, and third-party vendor costs based on the initial property assessment. **This Agreement is not valid without the attached estimate.**

IMPORTANT: This engagement is billed at the fixed price stated above, not on actual hours. Any work beyond the scope described in Exhibit A requires a signed Change Order before Havellin proceeds; the fixed price does not otherwise change.

3.3 Payment Schedule

Payment	Amount	Timing & Trigger
Deposit	50% of the fixed price	Due upon acceptance, on signing this Agreement — before any work begins
Midpoint Payment	25% of the fixed price	Due at the project midpoint: the earliest of the halfway point of the working days planned in Exhibit A, half of the work in scope complete, or every room in scope sorted and documented
Final Payment	25% of the fixed price	Invoiced after the final property walk-through, completing the fixed price (plus any approved Change Orders); due within 7 calendar days of the invoice date

Late Payment: Invoices unpaid after 7 days accrue interest at 1.5% per month. Havellin reserves the right to suspend work on this engagement while any invoice is more than 30 days past due.

Section 4 · Change Orders & Scope Modifications

The scope and estimate in this Agreement are based on the initial property assessment. Estate jobs frequently reveal unexpected complexity once physical work begins. The following triggers require a written Change Order signed by both parties before Havellin proceeds.

4.1 Change Order Triggers

- Discovery of additional rooms, storage units, outbuildings, or off-site property not included in original scope
- Discovery of specialized assets (significant art, collections, firearms) needing specialist handling, or a vendor not on the Estimate
- Hoarder conditions, biohazard materials, pest infestation, or structural issues affecting work scope
- Any work requested by the Client, or required by conditions at the property, beyond the scope of work described in Exhibit A
- Discovery of contested assets or disputes among beneficiaries that change the work to be done

4.2 Change Order Documentation

Change Order #

Date

Description of Change

Additional TC Hours

Additional PS Hours

Price of This Change: $ (the additional hours at the rates in Section 3.1)

Revised Fixed Project Fee: $

Client Approval: Signature: _____ Date: _____

Havellin Authorization: Signature: _____ Date: _____

Section 5 · Authority, Probate & Legal Compliance

5.1 Client Representations

By signing this Agreement, the Client represents and warrants the following:

1. The Client has the legal authority to authorize the services described in this Agreement over the contents to be handled, and will identify in writing any items owned by others or held outside the estate, and any exempt property claimed.
2. If acting as personal representative (executor): where already appointed, the Client holds Letters of Administration; where not yet appointed, the Client is the nominated personal representative and will provide the Letters before work begins, and no work begins until they are on file.
3. The Client will promptly provide Havellin with any court orders, restrictions, or legal limitations affecting the disposition of estate assets.
4. The Client will notify Havellin immediately of any disputes among beneficiaries, legal holds, or changes in legal status that may affect the scope of work.
5. Nothing will be sold, donated, disposed of or released to anyone until each Personal Representative has authorized it in writing as Section 5.3 provides.

5.2 Working with the Estate Attorney

Havellin works alongside the estate attorney and does not replace them. Specifically:

1. Havellin will prepare the Court Inventory of the tangible personal property at the property, each item with its recorded value and the basis for it, for the Personal Representative to adopt and counsel to serve and file under

Florida Statute §733.604. Havellin's values are estimates unless an appraisal is noted against the item.

2. Professional appraisals are arranged by the estate attorney. Havellin will give the appraiser access to the property and be present for the visit on request.
3. All asset sales will require written Personal Representative approval.
4. Havellin will keep a record of each disposition it carries out, for inclusion in the estate's final accounting.
5. All project files will be retained for a minimum of 7 years from project close date.

5.3 Asset Disposition Authorization

Havellin will carry out the following at the direction of the Personal Representative, subject to the approvals below; where there is more than one, the written approval of each is required:

Action	Approval Required	Threshold
Document and photograph assets	None required	All assets
Sort and stage assets for disposition	Verbal approval	All assets
Donate to qualifying 501(c)(3) organizations	Written PR approval	Every item; one of $500 or more initialled on its own
Arrange sale through a third-party channel	Written PR approval	Every item; one of $500 or more initialled on its own
Dispose of or recycle	Written PR approval	Every item; one of $500 or more initialled on its own
Admit an appraiser engaged by the estate attorney	Instruction from the estate attorney	As scheduled by the estate attorney
Move or deliver items to beneficiaries	Written PR approval + signed receipt from recipient	All items
Release a firearm	Written PR approval; a licensed firearms dealer only	Every firearm; an NFA item is never carried by Havellin

5.4 No Purchase by Havellin; Referral Fees

Havellin, its owners, team members and contractors will not purchase or otherwise acquire any of the contents of the property, or any other tangible personal property of the estate or the trust, whether directly or through any other person, and will take no part of the proceeds of any sale of that property. Havellin never receives or holds the proceeds of a sale: the selling vendor pays them to the estate.

Havellin may receive a referral fee from a vendor it recommends. Any such fee is paid by the vendor from its own revenue; it does not increase the commission or charges the Client pays, it is never added to the vendor's invoice, and none is received on the sale of a firearm. The Client may engage any vendor of the Client's choosing. Where a vendor that sells the contents pays such a fee, the Estimate says so on that vendor's line and the close-out record of sales names the vendor.

Section 6 · Liability, Insurance & Damage Protocol

6.1 Havellin Insurance Coverage

- **General Liability:** $\[2,000,000\] per occurrence / $\[4,000,000\] aggregate
- **Inland Marine / Bailee's Coverage:** $\[1,000,000 to 2,500,000\] for the Client's property in Havellin's care, custody or control, with a scheduled fine arts and collectibles endorsement on an agreed-value basis for items scheduled for the engagement
- **Professional Liability (Errors & Omissions):** covering the management, cataloguing and transition services Havellin provides
- **Commercial Auto:** $\[1,000,000\] combined single limit, including hired and non-owned auto liability
- **Umbrella:** $\[5,000,000 to 10,000,000\] excess liability over the coverages above
- **Commercial Crime (fidelity) and Cyber:** employee dishonesty and theft on client premises, covering every team member and contractor Havellin places on site; data breach
- **Workers' Compensation:** per Florida statutory requirements

Figures in brackets are the limits Havellin has applied for; the limits bound replace them, and the certificate of insurance Havellin provides on request states them.

6.2 Havellin Liability Limits

Havellin's responsibility for loss of or damage to an item of the property's contents caused by its negligence while the item is in its care, custody or control is measured by the item's documented value: the appraised value where an appraisal has been obtained, otherwise the value the Client declared for it in writing before it was moved, otherwise the value recorded for it on the Project Records (Section 7.1); and in no case exceeds $\[per-item limit\] for any one item or $\[per-occurrence limit\] for any one occurrence, the limits of the coverage stated in Section 6.1.

An item whose documented value exceeds the per-item limit is, before it is moved, either scheduled with Havellin's insurer for this engagement on an agreed-value basis or handled and transported by a specialist vendor carrying its own coverage; Havellin names those items to the Client before work begins. The Client is responsible for removing or securing jewelry, cash, negotiable instruments and original legal documents before work begins; any such item Havellin finds later is handed over the same day under Section 7, and Havellin's responsibility for it is limited to that hand-over.

Havellin is not liable for: pre-existing damage to property or items; loss or damage resulting from Client instructions that Havellin advised against in writing; items removed from the property by family members or third parties without Havellin's knowledge; or digital assets, cryptocurrencies, or financial instruments not physically present and accessible at the property.

6.3 Damage Incident Protocol

1. Havellin team member discovers or causes damage — document immediately with photographs and written description
2. Notify Client / Personal Representative within 24 hours of discovery
3. Preserve damaged item in place — do not move, repair, or dispose of without Client authorization
4. Submit written incident report to Anthony Graziano within 24 hours
5. Engage insurance carrier if damage exceeds $500

6. Provide Client with insurance carrier contact and claim process within 48 hours

6.4 Third-Party Vendors

Havellin may recommend, coordinate and schedule third-party vendors for this engagement: movers, haulers, estate sale companies, auction houses, appraisers, cleaners and trades. Each is an independent business and not an employee, partner or agent of Havellin. Havellin asks every vendor it books to carry its own commercial general liability insurance, automobile liability where it drives, coverage for the Client's property while in its custody where it takes property away, and professional liability where it appraises, and for its certificate of insurance before its first day on site; Havellin tells the Client of any vendor that has not provided one, and provides the certificates to the Client on request.

Havellin does not warrant or guarantee a vendor's work, its results, or any valuation, price or sale outcome, and is not responsible for a vendor's acts or omissions, including loss of or damage to property while in a vendor's custody; a claim arising from a vendor's conduct is made against that vendor and its insurer. To the fullest extent permitted by Florida law, the Client releases Havellin from, and will indemnify and hold Havellin harmless against, claims arising from the acts or omissions of a vendor the Client selected or engaged directly, other than on Havellin's recommendation. This release and indemnity do not cover Havellin's own negligence or willful misconduct.

Section 7 · Confidentiality & Privacy

All information encountered during this engagement — including but not limited to property contents, asset values, financial records, legal documents, family matters, and estate details — is strictly confidential. Havellin agrees to:

- Engage every team member and contractor under a written agreement carrying confidentiality obligations, executed before they work on any Havellin engagement
- Not disclose any information about the Client, property, estate, or family to any third party without written consent, except to counsel and others the Personal Representative authorizes, to vendors to the extent needed to perform the Services, to Havellin's technology providers (cloud storage, and software, including artificial intelligence, used to identify and research items from their photographs) under their confidentiality terms, or as required by law
- Not post or publish content related to the property or estate on social media or any public platform, except as expressly authorized under Section 7.2 below
- Maintain all Client and estate records in secure storage with access limited to authorized Havellin personnel only
- Return the Client's own documents (deeds, financial and legal papers Havellin encounters) to the Client or counsel, against a signed receipt, and never destroy them; an original will found at the property is handed, unopened, to counsel (or the Client where no counsel is recorded) the same day. Havellin's Project Records are retained for seven years under Section 7.1

The Client acknowledges that Havellin may use anonymized, non-identifying project data (e.g., square footage, job type, general scope) for internal business analysis and planning purposes only.

7.1 Documentation Media and Project Records

Havellin photographs the property, its contents, and all significant assets (these photographs, the "Documentation Media") as a necessary part of the Services — for condition documentation, asset identification,

the §733.604 inventory, appraisal support, and the chain-of-custody record. This documentation is not optional and is not separately charged; it is how the estate is accounted for.

Documentation Media is stored in the estate's own project folder on Havellin's Google Drive, accessible only to Havellin personnel assigned to this engagement and to anyone the Personal Representative authorizes in writing — counsel, the appraiser, the court. It is retained for seven years as part of the fiduciary record. It is never sold or licensed. It is not shared with any third party except a vendor performing Services on this engagement, Havellin's technology providers as Section 7 provides, or as required by law or court order, and is not published except as Section 7.2 permits.

Havellin also maintains a written record of the estate's contents and their disposition: an itemized list of the property documented, its location and condition, the disposition authorized for each item, the date it was carried out, the person who authorized it, and, where an item was released to a beneficiary or to a third party, the name of that recipient and the reference of any receipt obtained under Section 5.3 (together with the Documentation Media, the "Project Records"). Where an item was sold or consigned and proceeds were actually received, the Project Records state the amount received, any fees deducted, and the net amount. At the close of the engagement Havellin delivers the Disposition Ledger, the Project Records' final statement of where every item went, to the Personal Representative for review and signature.

The Project Records are Havellin's work product, prepared for the Personal Representative and forming part of the fiduciary record of this engagement. They are held on the terms stated above and are retained for seven years. Havellin will provide them to the Personal Representative, to counsel of record, and to any other person the Personal Representative authorizes in writing, and will produce them as required by law or court order. This obligation survives completion of the engagement, and the Project Records are not Client documents for the purposes of the return provision in Section 7. Section 7.2 does not apply to the written record, and no part of it is used for marketing or promotional purposes; Documentation Media may be used only as Section 7.2 permits.

What the Project Records are and are not. The Project Records are Havellin's contemporaneous record of work performed at the direction of the Personal Representative. They are not an appraisal, and any value recorded in them is Havellin's estimate, with its basis stated, unless an appraiser's report is noted against it; they are not the inventory required by Fla. Stat. §733.604, and they do not evidence that any distribution satisfied a devise or bequest or that title to any item has passed. Responsibility for the estate's inventory, accounting and distributions rests with the Personal Representative and counsel.

7.2 Marketing & Promotional Use

Havellin may use Documentation Media or other media captured during the engagement for marketing, promotional, and educational purposes, including social media, website, print collateral, and presentations. This authorization is subject without exception to the restrictions below, and **Client may decline it in full by checking the box at the end of this Section**. Declining changes nothing about the Services, the fee, or any other term of this Agreement.

(a) No specific street address or unit number shall be disclosed in any published media.

(b) No name of the Client, the property owner, or any family member, heir, or beneficiary shall appear in published media.

(c) No image or likeness of any identifiable individual shall be published without a separate written release.

(d) No document, financial record, or item bearing identifying information shall be shown.

(e) Havellin will use reasonable care to avoid publishing media that could clearly identify a specific residence, family, or estate.

The restrictions in this Section bind Havellin's personnel, Havellin will require the vendors it engages on this matter to observe them, and they survive completion or termination of this Agreement.

Client may decline, or withdraw an authorization already given, at any time by delivering written notice to Havellin, whether or not the box below was checked. Withdrawal applies prospectively and does not require removal of media already published prior to receipt.

Marketing & Promotional Use — Optional Opt-Out

☐ **I DO NOT AUTHORIZE** any marketing or promotional use of media from this engagement.

Leave this box unchecked to authorize the use described in Section 7.2, on the restrictions stated there. Checking it changes nothing about the Services, the fee, or any other term of this Agreement. You may also decline, or withdraw an authorization, at any time by written notice — the box is a convenience, not the only way.

Section 8 · Termination

8.1 Termination by Client

The Client may terminate this Agreement at any time with written notice. Upon termination:

- Havellin will cease all work and secure the property upon receipt of written notice
- The fixed fee is earned in stages against the payment schedule in Section 3.3. The deposit is earned in full on signature of this Agreement and is not refundable. Seventy-five percent (75%) of the fixed fee is earned once the project midpoint defined in that schedule is reached. The full fixed fee is earned on completion of the scope of work described in Exhibit A.
- The Client remains responsible for the portion of the fixed fee earned as of the termination date, together with any third-party vendor commitments the Client has made, or authorized in writing, that cannot be cancelled without charge
- No part of the fee is calculated from hours worked. The fixed fee does not vary with the time Havellin spends, on termination or otherwise
- Where Havellin is in material breach of this Agreement and has not cured that breach within seven (7) days of the Client's written notice describing it, no further portion of the fee is earned from the date of that notice, and Havellin will refund any amount it holds above the portion earned before it
- A final invoice stating the portion of the fixed fee earned will be issued within 10 business days of termination
- Havellin will provide the Client with all documentation completed through the termination date

8.2 Termination by Havellin

Havellin may suspend or terminate this Agreement with written notice under the following circumstances:

- Non-payment of any invoice more than 30 days past due
- Discovery of conditions posing a health or safety risk to Havellin personnel that the Client is unwilling or unable to remediate
- Client misrepresentation of authority, scope, or material facts at intake
- Court order or legal hold preventing Havellin from completing the contracted scope

On termination by Havellin, Section 8.1 applies as of the date of Havellin's notice. If the Client ceases to hold the authority under which this Agreement was signed (Letters revoked, a successor appointed, or the Client's death or resignation), work stops; this Agreement continues with the successor fiduciary once they assume it in writing, or otherwise ends under Section 8.1.

Section 9 · Dispute Resolution & Governing Law

This Agreement is governed by the laws of the State of Florida. Any dispute arising from this Agreement that cannot be resolved through good-faith negotiation within 30 days shall be submitted to binding arbitration in Palm Beach County, Florida, under the rules of the American Arbitration Association. The prevailing party shall be entitled to recover reasonable attorneys' fees and costs.

Nothing in this section prevents either party from seeking emergency injunctive relief in a court of competent jurisdiction to prevent irreparable harm.

Section 10 · General Provisions

Entire Agreement. This Agreement, together with any executed Change Orders and attached Exhibits, constitutes the entire agreement between the parties and supersedes all prior discussions, proposals, or representations.

Amendments. No amendment to this Agreement is valid unless in writing and signed by both parties.

Severability. If any provision of this Agreement is found unenforceable, the remaining provisions remain in full force and effect.

Assignment. Neither party may assign this Agreement without the written consent of the other party. Havellin may use its own team members and contractors to fulfill its obligations and remains responsible for their performance; third-party vendors are governed by Section 6.4.

Independent Contractor. Havellin and its team members are independent contractors, not employees of the Client or the estate. Havellin is responsible for all applicable taxes, insurance, and employment obligations for its personnel.

Force Majeure. Neither party is liable for delays caused by circumstances beyond their reasonable control, including natural disasters, government orders, or public health emergencies.

Notices. Notices under this Agreement are given in writing to the addresses and email addresses in Section 1, or to any other address a party gives in writing; a notice by email is given when sent.

Counterparts; Electronic Signatures. This Agreement may be signed in counterparts, and an electronic signature (Fla. Stat. §668.50) or a signed copy delivered electronically is an original.

Signature Page

By signing below, both parties acknowledge they have read, understood, and agreed to all terms of this Agreement. No work will begin until the Client and Havellin have signed and the deposit has been received.

Client / Personal Representative

Printed name: _____ Title / role: _____

Signature: _____ Date: _____

Signing as Personal Representative of the Estate of [Decedent], and not individually.

Co-signer (if applicable: co-personal representative or co-trustee)

Printed name: _____ Title / role: _____

Signature: _____ Date: _____

Havellin Palm Beach, LLC

Anthony Graziano · Managing Member

Signature: _____ Date: _____
